

26STCP01199 26STCP01199

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STCP01199 Hearing Date: July 28, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Trent

Robert White's Petition to Confirm Arbitration Award is granted.

The proposed

judgment filed on July 2, 2026 is signed and entered this date.

Analysis:

Petitioner Trent

Robert White("Petitioner") filed the instant

Petition to Confirm Arbitration Award against Respondents Vanguard Marketing

Corporation ("Respondent") and Financial Industry Regulatory Authority ("FINRA")

on March 24, 2026. The Petition seeks to confirm the arbitration award issued

on January 15, 2026, in favor of Petitioner, requiring expungement of all references to certain

customer dispute information maintained by the Financial Industry Regulatory Authority ("FINRA") in the Central Registration Depository

("CRD"). (Pet., ¶¶7-8.) FINRA filed a Notice of Non-Opposition to

Confirm Arbitration Award on May 12, 2026. Respondent filed no response to the

Petition.

Legal Standard

"Any party to an arbitration in which an award has been made

may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all

parties to the arbitration and may name as respondents any other persons bound

by the arbitration award." (Code Civ.

Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

Discussion

Filing Requirements of a Petition to Confirm Arbitration Award (CCP § 1285.4)

Code

of Civil Procedure section 1285.4 states: “A petition under this chapter shall:

(a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

(b)

Set forth the names of the arbitrators.

(c) Set forth

or have attached a copy of the award and the written opinion of the arbitrators, if any.”

(Code Civ. Proc., § 1285.4 (emphasis added).) The Petition sets forth the substance of the arbitration award and attaches a copy of the arbitration award with the names of the arbitrators. (Pet., ¶¶4-6 and Exhs. 1-2.) This satisfies Code of Civil Procedure section 1285.4, subdivisions (a)-(c).

Service of the Petition and Notice of Hearing (CCP § 1290.4)

Code of Civil Procedure

section 1290.4 states in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and

any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

(Code Civ. Proc., § 1290.4.) The arbitration agreement does not provide for the manner of service. (Pet., Exh. 2.) Accordingly, service must be in a manner approved for service of a summons. On April 23, 2026 and May 6, 2026, Petitioner filed proofs of personal service with respect to FINRA and Respondent, respectively. (Proofs of Personal Service, filed 04/23/26 and 05/06/26.) Therefore, the Court finds the Petition complies with Code of Civil Procedure section 1290.4.

Service of the Arbitration
Award (CCP § 1283.6)

Code of Civil Procedure section 1283.6 provides that: “The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” (Emphasis added.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the Petition. (See *Murry v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.)

The Petition demonstrates that the arbitration award was served on the parties on January 15, 2026. (Pet., ¶15 and Attachment 1, p. 5.) Therefore, the Court finds the requirements of Code of Civil Procedure section 1283.6 have been met.

Timing of Service of Petition (CCP §§ 1288, 1288.4)

A party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less

than 10 days, after the award is served. (Code Civ. Proc., §§ 1288, 1288.4.) The Petition was timely filed approximately three months after the award was issued.

Merits of the Petition to Confirm Arbitration Award

The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Substantively, Petitioner has demonstrated that on January 15, 2026, the arbitrators issued an award in their favor and against Respondent requiring expungement of all references to certain customer dispute information as to Petitioner maintained by FINRA in Petitioner's Central Registration Depository ("CRD") record. (Pet., Exhibit 1, pp. 3-5.)

Conclusion

Petitioner
Trent Robert White's Petition to Confirm Arbitration Award is granted.

The proposed
judgment filed on July 2, 2026 is signed and entered this date.

Moving party is to give notice.